



GiftUp – Terms of Use

Effective Date: 17 September 2025

Last Updated: 17 September 2025

Domain: <https://giftup.tech>

Operator: SAFIR GLOBAL KARA DENİZ TASIMACILIGI IC VE DIS TIC. LTD. ŞTİ., Rize, Türkiye

Contact: info@giftup.tech

1. Introduction & Acceptance

These Terms of Use ("Terms") constitute a legally binding agreement between you ("User," "you," or "your") and **SAFIR GLOBAL KARA DENİZ TASIMACILIGI IC VE DIS TIC. LTD. ŞTİ.** ("GiftUp," "we," "us," or "our"), the operator of the GiftUp platform, website, mobile applications, and smart-contract ecosystem (collectively, the "Services").

By accessing or using the Services, you agree to be bound by these Terms and any policies referenced herein, including the **Privacy Policy**, **Token Sale Conditions**, and any applicable DAO governance guidelines.

If you do not agree to these Terms, you must immediately cease use of all GiftUp Services.

GiftUp provides a blockchain-based platform enabling merchants and users to create, issue, trade, and redeem digital gift tokens ("NFT Gifts") powered by the GFT utility token. The Services are offered under Turkish law and comply with applicable international standards.

2. Definitions

For the purposes of these Terms:

- **"GiftUp"** means the ecosystem, platform, and all associated applications, APIs, and smart contracts operated by the Company.
- **"Company"** refers to **SAFIR GLOBAL KARA DENİZ TASIMACILIGI IC VE DIS TIC. LTD. ŞTİ.**, a private limited company registered in the Republic of Türkiye.
- **"GFT Token" or "GFT"** means the native utility token of the GiftUp ecosystem deployed on the **TRON blockchain** (contract address: **THXzL34gEr3QXRBpkWRAH8XwtvjYAeVFNF**).
- **"NFT Gift"** means a non-fungible token representing a digital gift card or voucher issued by a merchant or user through the platform.
- **"Merchant"** means a business or individual using GiftUp to issue or sell tokenized gifts.
- **"User"** means any person accessing or using GiftUp, including merchants and individual holders.
- **"Wallet"** means a compatible blockchain address capable of interacting with TRC-20 and TRC-721 smart contracts.
- **"DAO"** means the decentralized governance structure enabling token holders to participate in decision-making.
- **"TRON Network"** means the blockchain network on which GFT and related smart contracts operate.

Any references to "you" or "your" include any authorized representatives acting on behalf of an entity.

3. Eligibility

To use the GiftUp Services, you must:

- Be at least **18 years old** (or the age of legal majority in your jurisdiction);

- Have full legal capacity to enter into a binding contract;
- Not be a citizen or resident of a jurisdiction where access to blockchain services or token sales is restricted or prohibited (including, without limitation, the United States, China, or any sanctioned territory);
- Not appear on any sanctions or restricted party lists maintained by Türkiye, the European Union, the United Kingdom, or the United Nations;
- Comply with all applicable laws, regulations, and tax obligations associated with digital assets in your country of residence.

GiftUp reserves the right to refuse access or terminate your account if we determine, in our sole discretion, that you do not meet eligibility requirements or present regulatory, security, or reputational risks.

4. Nature of Services

GiftUp is a **non-custodial**, blockchain-based digital gifting platform.

We do not hold, store, or manage your private keys or digital assets. All transactions occur directly between users through smart contracts deployed on the TRON network.

Core functions include:

- Creation and distribution of tokenized gift cards (NFT Gifts);
- Trading and redemption of NFT Gifts via decentralized mechanisms;
- Staking of GFT tokens for platform rewards and governance participation;
- Access to merchant dashboards, APIs, and analytical tools;
- Participation in DAO-based decision-making for ecosystem development.

Important Clarifications:

- GiftUp does **not** operate as a financial institution, exchange, or payment processor;

- GiftUp does **not** provide investment advice or guarantee any asset value;
- All blockchain interactions are **final and irreversible** once confirmed on-chain;
- GiftUp may integrate with third-party services (wallets, on-ramps) governed by their own terms.

5. Risk Acknowledgment

By using GiftUp, you acknowledge and accept the following risks inherent to blockchain technology:

1. **Market Risk:** Prices of tokens, including GFT and NFT Gifts, are volatile and may fluctuate due to external market conditions.
2. **Regulatory Risk:** Future legal changes or government actions could impact the availability, legality, or taxation of digital assets.
3. **Technical Risk:** Smart contracts, network congestion, or node failures may result in delays, losses, or transaction errors.
4. **Security Risk:** You are solely responsible for the security of your wallet, private keys, and recovery phrases. GiftUp cannot recover lost access or funds.
5. **Blockchain Immutability:** Transactions and token metadata stored on the blockchain are permanent and publicly visible.
6. **Third-Party Risk:** Interactions with external services (exchanges, wallets, partners) carry their own operational and legal risks.

GiftUp does not warrant uninterrupted access or error-free functionality of its Services and shall not be held liable for damages resulting from the above risks.

6. Amendments to the Terms

GiftUp may revise or update these Terms at any time, at its sole discretion, to reflect changes in law, business operations, or the nature of the Services.

- **Notice of Changes:**

Updated versions will be published on **giftup.tech/terms**.

Significant changes may also be communicated via email or in-app notice prior to taking effect.

- **Effective Date:**

The "Last Updated" date at the top of this document reflects the latest revision.

By continuing to use the Services after an update, you confirm acceptance of the revised Terms.

If you do not agree, you must discontinue using GiftUp and related applications.

7. User Responsibilities

When using GiftUp, you agree to act responsibly, ethically, and in compliance with applicable laws. You must not engage in any activity that could harm the platform, its users, or the integrity of blockchain networks.

7.1 Acceptable Use

You agree **not to**:

- Violate any law, regulation, or third-party right;
- Use the platform for money laundering, terrorist financing, fraud, or other unlawful purposes;
- Interfere with or disrupt network nodes, servers, or smart contracts;
- Attempt to gain unauthorized access to private systems or data;
- Upload, distribute, or transmit malware, phishing links, or harmful code;
- Use bots or automated scripts to manipulate system behavior or token markets;

- Misrepresent your identity, affiliation, or purpose when using GiftUp services;
- Infringe upon any intellectual property rights belonging to GiftUp or third parties.

7.2 Responsibility for Wallets and Keys

You are solely responsible for safeguarding your wallet credentials, private keys, and recovery phrases. GiftUp cannot access or restore your wallet or assets if they are lost or compromised.

7.3 Account Security

You must maintain the confidentiality of your account credentials (if applicable) and promptly notify GiftUp of any suspected unauthorized activity.

GiftUp reserves the right to suspend or terminate accounts suspected of breach, fraud, or malicious behavior.

7.4 Compliance and Tax Obligations

You are solely responsible for determining and fulfilling any tax obligations related to your participation in the GiftUp ecosystem, including but not limited to income, capital gains, or value-added taxes under applicable law.

8. Token Use & Transactions

8.1 Utility Token Nature

The **GFT Token** is a **utility token**, not a security or investment instrument. It grants access to platform utilities such as NFT gift issuance, staking, and governance participation.

Ownership of GFT does not represent equity, shares, voting rights in the Company, or entitlement to dividends.

8.2 Token Sales and Distribution

Participation in any GFT presale, public sale, or airdrop is governed by the **Token Sale Agreement** and applicable laws.

All contributions are final and non-refundable once processed on-chain. GiftUp does not guarantee the market value or liquidity of tokens post-sale.

8.3 Smart Contract Interactions

All transactions involving GFT or NFT Gifts occur via smart contracts deployed on the **TRON Network** under contract **THXzL34gEr3QXRBpKWRAH8XwtvjYAeVFNF** and related subcontracts.

Once executed and confirmed by the blockchain, transactions are **irreversible**. Users should verify transaction details carefully before signing or broadcasting.

8.4 DAO Governance

GFT holders may participate in decentralized governance through the **GiftUp DAO**, voting on proposals related to product features, partnerships, or ecosystem grants. DAO participation is voluntary and governed by separate DAO Rules published on giftup.tech.

8.5 Merchant Interactions

Merchants issuing NFT gifts through the platform must ensure compliance with consumer protection laws, local business registration, and tax reporting in their jurisdictions. GiftUp does not act as an intermediary or guarantor between merchants and consumers.

9. Intellectual Property

9.1 Ownership

All intellectual property rights in the **GiftUp brand**, trademarks, logos, platform design, smart-contract code, documentation, and other content are owned or licensed by **SAFIR GLOBAL KARA DENIZ TASIMACILIGI IC VE DIS TIC. LTD. ŞTİ.**

9.2 Limited License

GiftUp grants you a **non-exclusive, revocable, non-transferable license** to access and use the Services strictly in accordance with these Terms.

You may not copy, modify, reverse engineer, sell, or distribute any part of the Services without prior written consent.

9.3 User-Generated Content

Any feedback, suggestions, or content submitted by users (e.g., DAO proposals, designs, or code contributions) become part of the GiftUp ecosystem and may be used by the Company without compensation, provided that such use respects moral rights and data protection standards.

9.4 Trademarks and Logos

You may not use GiftUp's trademarks, logos, or visual identity in any manner likely to cause confusion or imply false endorsement, except under an approved partnership or affiliate program.

10. Privacy & Data Protection

Your privacy is governed by the **GiftUp Privacy Policy**, available at giftup.tech/privacy.

By using the platform, you acknowledge that you have read, understood, and agree to the terms of the Privacy Policy, which describes:

- The types of personal data collected;
- The purposes and legal bases for processing;
- The use of blockchain data and cookies;
- Data retention, rights under **KVKK** and **GDPR**, and complaint mechanisms.

GiftUp acts as a **data controller** for user data and complies with the Turkish Personal Data Protection Law (Law No. 6698) and applicable international data protection regulations.

You understand and agree that blockchain transactions (including wallet addresses and transaction hashes) are public by nature and cannot be deleted or altered once confirmed on-chain.

11. Limitation of Liability

To the maximum extent permitted by law:

1. **No Warranty:** The Services are provided "as is" and "as available," without warranties of any kind, whether express or implied.
2. **No Financial Advice:** Nothing in the platform constitutes investment or financial advice. Users are responsible for their own decisions.
3. **No Liability for Loss:** GiftUp shall not be liable for any loss of profits, data, digital assets, goodwill, or other indirect, consequential, or punitive damages.
4. **Blockchain Operations:** GiftUp is not responsible for blockchain malfunctions, network congestion, transaction delays, or failures caused by third-party nodes or service providers.
5. **Security Responsibility:** You bear full responsibility for maintaining the confidentiality and security of your wallet credentials.
6. **Regulatory Impact:** GiftUp shall not be held liable for losses arising from regulatory changes or token restrictions imposed by governmental authorities.

In no event shall GiftUp's aggregate liability exceed **the equivalent of 100 USD** or the total amount of fees paid by the user in the preceding twelve months, whichever is lower.

12. Indemnification

You agree to **indemnify, defend, and hold harmless** GiftUp, its affiliates, directors, employees, and partners from any claims, damages, losses, or expenses (including reasonable legal fees) arising from:

- Your use or misuse of the Services;
- Violation of these Terms or applicable laws;
- Infringement of intellectual property or privacy rights;
- Actions or omissions by your authorized representatives;
- Disputes between you and merchants, users, or third parties involving GiftUp's platform.

GiftUp reserves the right to assume exclusive defense and control of any matter subject to indemnification, at your expense, and you agree to cooperate fully in such defense.

13. Dispute Resolution

13.1 Good Faith Negotiation

Before initiating any formal dispute proceedings, both parties agree to attempt to resolve disputes amicably and in good faith.

You may contact GiftUp at **info@giftup.tech** to submit any complaint or inquiry related to the Services. GiftUp will make reasonable efforts to address such matters promptly.

13.2 Arbitration

If a dispute cannot be resolved through informal means, it shall be referred to and finally settled by **arbitration** in accordance with the rules of the **Istanbul Arbitration Center (ISTAC)**.

- The arbitration tribunal shall consist of **one (1)** arbitrator appointed under ISTAC rules;
- The seat of arbitration shall be **Istanbul, Türkiye**;
- The language of proceedings shall be **English** (or Turkish upon mutual agreement);

- The arbitration award shall be **final and binding** upon both parties.

13.3 Exception — Injunctive Relief

Either party may seek temporary or injunctive relief before competent Turkish courts when necessary to prevent imminent harm, without waiving the obligation to arbitrate the underlying dispute.

14. Termination

14.1 User-Initiated Termination

You may discontinue use of GiftUp Services at any time by ceasing interaction with the platform and removing any associated browser data or API tokens.

14.2 Company-Initiated Termination

GiftUp reserves the right, in its sole discretion, to suspend or terminate access to all or part of the Services without prior notice if:

- You violate these Terms or any applicable law;
- You engage in fraudulent, abusive, or harmful activity;
- Required by law enforcement or regulatory authorities;
- Necessary to maintain security, system integrity, or legal compliance.

Upon termination, your rights to use the Services shall immediately cease. However, any rights and obligations accrued before termination (e.g., outstanding liabilities, indemnities) will remain in effect.

15. Force Majeure

GiftUp shall not be held liable for any failure or delay in performance resulting from events beyond its reasonable control, including but not limited to:

- Acts of God (natural disasters, pandemics, earthquakes, floods);
- Governmental or regulatory actions;
- War, terrorism, civil unrest, embargoes, or sanctions;
- Technical failures of blockchain networks, internet providers, or data centers;
- Power outages or cyberattacks.

In such circumstances, GiftUp will make reasonable efforts to restore Services but shall not be responsible for losses or damages arising from such events.

16. Governing Law & Jurisdiction

These Terms shall be governed by and construed in accordance with the **laws of the Republic of Türkiye**, without regard to its conflict of law provisions.

The exclusive venue for any proceedings not subject to arbitration under Section 13 shall be the competent courts of **Istanbul, Türkiye**.

GiftUp operates in full compliance with Turkish Commercial Law and applicable digital asset regulations. Users outside Türkiye are responsible for ensuring that accessing and using GiftUp Services is lawful in their jurisdiction.

17. Contact Information

Operator:

SAFIR GLOBAL KARA DENİZ TASIMACILIĞI İÇ VE DİŞ TİC. LTD. ŞTİ.
Rize, Türkiye

Email: info@giftup.tech

Website: <https://giftup.tech>

Blockchain Reference: TRON Contract —

THXzL34gEr3QXRBpKWRAH8XwtvjYAeVFNf

For data privacy inquiries, please refer to the **Privacy Policy** or contact our Data Protection Officer via email.

GiftUp aims to respond to all verified legal or compliance-related communications within **30 business days**.

18. Entire Agreement & Effective Date

18.1 Entire Agreement

These Terms, together with the **Privacy Policy**, **Token Sale Agreement**, and any DAO governance documents referenced herein, constitute the entire agreement between you and GiftUp.

They supersede all prior understandings, representations, or agreements — whether written or oral — regarding your use of the Services.

18.2 Severability

If any provision of these Terms is found invalid or unenforceable, the remaining provisions shall remain in full force and effect.

18.3 Waiver

Failure by GiftUp to enforce any right or provision shall not constitute a waiver of such right or provision.

18.4 Assignment

You may not assign or transfer any of your rights or obligations under these Terms without prior written consent. GiftUp may assign these Terms as part of a merger, acquisition, or corporate restructuring.

18.5 Effective Date

These Terms are effective as of **17 September 2025** and shall remain in force until amended or replaced by an updated version published on **giftup.tech/terms**.

Final Clause

By accessing or using the GiftUp platform, you acknowledge that you have read, understood, and agreed to be bound by these Terms of Use.

You further acknowledge that blockchain transactions carry inherent risks, that GFT is a utility token, and that your participation in the ecosystem is voluntary and at your own discretion.

© 2025 GiftUp — All Rights Reserved

Operated by **SAFIR GLOBAL KARA DENİZ TASIMACILIĞI İÇ VE DİŞ TİC. LTD. ŞTİ.**,
Rize, Türkiye.

For inquiries: **info@giftup.tech**